

25STCV22798 25STCV22798

County: los-angeles

Division: Civil Law and Motion

Department: 734

Hearing date: 2026-09-23

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C734%2C09%2F23%2F2026

Source SHA-256: 5ce909693b6f572834597e6230ba77e9af46bc0b9cf44beaa8f242f6dad05f50

Case Number: 25STCV22798 Hearing Date: September 23, 2026 Dept: 734

Plaintiff alleges that

Defendants failed to properly remediate a water intrusion incident that resulted in mold contamination in Plaintiff's apartment unit. Defendants also deactivated the fire sprinkler system without notice. Defendants further gave Plaintiff insufficient notice to vacate the apartment for repairs. Defendants failed to file a Tenant Habitability Plan for primary renovation work, and threatened to force an entry without legal authorization.

Plaintiff Kamran Rahimov moves for an order deeming

admitted requests for admission, and an order compelling initial discovery responses, both as to Defendant OP Property Management L.P..

TENTATIVE RULING

Plaintiff

Kamran Rahimov's motion to compel initial discovery responses to special interrogatories, set one and requests for production of documents, set one is GRANTED. Verified responses, without objections (which have been waived) are due within 20 days.

Plaintiff Kamran Rahimov's motion to compel

for an order deeming admitted requests for admission, set one is GRANTED. Defendant's objections have been deemed waived due to the untimely responses.

Even

the untimely responses served by Defendant OP Property Management, L.P. on

August 31, 2026 are verified by Dan Hooks, the Vice President and Assistant

General Counsel for Air Communities and officer of Apartment Income REIT LLC--not OP Property Management, L.P. The Court is aware that the identity and capacity of the parties and their declarants is an ongoing issue in this case. The issue

becomes multiplied with regard to discovery, since a declarant who does not state a factual basis for personal knowledge and authorization to speak on behalf of an entity named as a party cannot bind that party to the responses. OP Property Management, L.P. must find someone who can answer on its

behalf, even if the responses are that Defendant lacks information to answer

because it was not the management company for the subject property. On the other hand, if AIR

Property Management TRS, LLC contends that it is the

proper defendant, it may bring a motion to intervene. Otherwise, its responses

are of no effect.